

24LBCV01308 24LBCV01308

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-07-21

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Case Number: 24LBCV01308 Hearing Date: July 21, 2026 Dept: S27

1. Background

Facts

Plaintiff, Interpool, Inc. dba Trac

Intermodal filed this action against Defendants, HHM International, LLC, Shriak M. Sharma, and Vishu M. Sharma for common counts, conversion, injunctive relief, and possession arising out of Defendants' use of Plaintiff's chassis without invoice payment.

Plaintiff filed the complaint on 6/24/24. Plaintiff dismissed the individual defendants, leaving only the entity defendant as an active defendant in the action. The Court entered judgment by default on 9/10/24. The judgment requires Defendant to pay Plaintiff \$113,777.28 and also includes the following language re: injunctive relief:

IT IS HEREBY ORDERED that defendants, and each of them, and their officers, agents, employees, and drivers are permanently enjoined from taking chassis owned by plaintiff, INTERPOOL, INC. DBA TRAC INTERMODAL, from the chassis pools at the ports of Los Angeles and Long Beach to transport containers from steamships at the ports. Disobedience of this order shall be punished by contempt.

Plaintiff filed notice of entry of judgment on 10/23/24, which shows Plaintiff served HHM International, LLC, by mail, with the judgment on the same day.

2. Motion

for an OSC re: Contempt

a.

Relief Sought

Plaintiff contends Defendant, since the judgment was entered, has continued to rent chassis from the pool. Plaintiff asks the Court to issue an OSC re: contempt against Defendant and its officers, Shriak M. Sharma and Vibhu Sharma.

a. Law

Governing Indirect Contempt

[An "indirect contempt" occurs outside the judge's presence (e.g., attorney communications with jurors outside court). *Hanson v. Superior Court* (2001) 91 Cal.App.4th 75, 81. In such cases, due process requires a more elaborate procedure to notify the person so charged and to allow the person an opportunity to be heard. See CCP §1211 et seq.; see also *Hanson*, supra, at 81.

In brief, "an affidavit must be presented to the court stating the facts constituting the contempt, an order to show cause must be issued, and a hearing on the facts must be held by the judge." *Arthur v. Superior Court* (1965) 62 Cal.2d 404, 407-408. Since the acts involved did not occur in the court's presence, the affidavit (declaration) must cover each element of the commission of the contempt. See CCP §1211.5.

This affidavit serves as the "complaint" in indirect contempt proceeding. *Lyon v. Superior Court* (1968) 68 Cal.2d 446, 452. As with affidavits generally, the allegations must contain factual allegations based on firsthand knowledge (no hearsay). Upon receipt of the affidavit, the court usually issues an order to show cause (OSC) why the person should not be held in contempt. CCP

§1212.

Although not required, the alleged contemnor may respond to the affidavit and OSC by counteraffidavits or declarations. These affidavits serve as the “answer” to the charging allegations in the original affidavit. *Id.*

Such affidavits are not mandatory, however. The alleged contemnor may assert defenses entirely at the hearing. See CCP §1217.

Both oral testimony and documentary evidence may be produced at the hearing. See CCP § 1217; *In re Morelli* (1970) 11 Cal.App.3d 819, 834.

b. Analysis
re: Indirect Contempt

The Court finds Plaintiff’s evidence sufficient to support a conclusion that an OSC re: indirect contempt may issue. The Court will discuss the scheduling and service of OSC re: contempt papers with Plaintiff at the time of the hearing.